

1 Now the man can't tell the story straight,
2 flips on what he says to 911 and suddenly starts
3 telling police officers I am lucky I am not dead.

4 What happened that means I should be lucky
5 that I am not dead Subhi -- that is a good question --
6 unless he knows I was struck?

7 That is a really good answer to have to come
8 up with how you explain when you say I am lucky I am
9 not dead, because something happened.

10 He is just: He is lucky he is not dead.

11 For a man to claim that he found me like I am
12 a crazy man on the sidewalk and he is scared of me,
13 not touching me, to go from that to laughing and
14 joking and finding it humorous that I was lucky that I
15 am not dead.

16 MS. NAVARATNASINGHAM: Misstates the
17 testimony.

18 MR. ROSARIO: No. You can see it with your
19 own eyes. All right. I will let that one sit for
20 you. Okay. There is a yield sign.

21 (Discussion off the record).

22 MS. NAVARATNASINGHAM: Excuse me. This is
23 not Mr. Sobati's argument.

24 THE COURT: You have 10 minutes, sir.

25 MR. ROSARIO: So there is a yield sign. Duty
26 of care to yield to bikes and pedestrians, all right?

27 There is a clearly marked yield sign for
28 people who are turning.